



CHAPTER cclvi.

An Act to empower the Corporation of Leeds to make additional waterworks and for other purposes. A.D. 1901.

[17th August 1901.]

WHEREAS the lord mayor aldermen and citizens of the city of Leeds (in this Act called "the Corporation") are the owners of waterworks and supply water within the city of Leeds and neighbourhood under various Acts of Parliament :

And whereas the supply of water from the present waterworks of the Corporation is inadequate to meet the present and growing demands of the inhabitants within the water limits of the Corporation and it is expedient that the Corporation should be empowered to make and maintain the additional waterworks by this Act authorised :

And whereas the mayor aldermen and burgesses of the borough of Harrogate (in this Act referred to as "the Harrogate Corporation") are promoting in the present session of Parliament a Bill to empower them to construct waterworks including a reservoir to be called the Roundhill Reservoir on the Pott Beck a tributary of the River Burn and such reservoir will be situate above the Leighton Reservoir (also on the Pott Beck) by this Act authorised and it is expedient that provision should be made as in this Act contained with reference to the authorised works of the two Corporations :

And whereas there is also pending in Parliament a Bill containing provisions in regard to the loans of the Corporation and it is expedient in the event of the said Bill passing into law and becoming an Act that the money authorised to be borrowed under this Act should be raised in accordance with the said provisions :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

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And whereas estimates have been prepared by the Corporation for the purchase of land for and the construction of the works by this Act authorised and for other waterworks purposes and such estimates amount to the sum of two millions two hundred thousand pounds :

And whereas the works included in such estimates are permanent works within the meaning of section 234 of the Public Health Act 1875 :

And whereas an absolute majority of the whole number of the council at a meeting held on the second day of January one thousand nine hundred and one after ten clear days notice by public advertisement of such meeting and of the purpose thereof in the Leeds Mercury a local newspaper published and circulating in the city such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the city fund and city rate :

And whereas such resolution was published twice in the said Leeds Mercury and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the sixth day of February one thousand nine hundred and one being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the city by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the West Riding and with the clerk of the peace for the North Riding of the county of York and are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas since the deposit of the deposited plans sections and books of reference an alteration of the plans and sections of the Colsterdale Reservoir and the Leighton Reservoir by this Act authorised has been made and plans and sections showing such

alteration and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands in which such altered reservoirs will be made have been deposited with the clerk of the peace for the North Riding of the county of York and are hereinafter referred to as the amended plans sections and book of reference: A.D. 1901.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as the Leeds Corporation Water Act 1901. Short title.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act :— Incorporation of Acts.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) :

The Waterworks Clauses Act 1847 (except the provisions with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and except section 83 relating to accounts) but that Act shall be read and have effect as if the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" were omitted from section 44:

The Waterworks Clauses Act 1863 :

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in such provisions for the purposes of this Act "the railway" means the reservoirs and aqueducts by this Act authorised and "the centre of the railway" means the boundaries of the reservoirs and the centres of the aqueducts respectively.

3. The several words and expressions to which by the Acts wholly or partially incorporated with this Act meanings are assigned shall in this Act have the same respective meanings unless there is something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise require— Interpretation.

"The Corporation" means the lord mayor aldermen and citizens of the city of Leeds ;

"The city" means the city of Leeds ;

"The council" means the council of the city ;

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“The town clerk” and “the treasurer” mean respectively the town clerk and the treasurer of the city ;

“The city fund” and “the city rate” mean respectively the city fund and city rate of the city ;

“The Leeds Corporation (General Powers) Act” means the Act relating to the loans of the Corporation the Bill for which is recited in the preamble of this Act ;

“The Harrogate Act” means the Act promoted by the Harrogate Corporation the Bill for which is recited in the preamble of this Act.

Power to
make water-
works.

4. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and upon the lands delineated upon the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections (except as to Works No. 1 and No. 2 which shall be in accordance with the amended plans and sections and upon the lands described in the amended book of reference) the works hereinafter described (that is to say) :—

Work No. 1 A reservoir (to be called the Colsterdale Reservoir) to be formed by means of an embankment or dam twenty-five chains or thereabouts in length across the River Burn at a point thereon 19 chains or thereabouts measured in an easterly direction from the house known as Spring House Farm and extending from the said embankment or dam up the River Burn to a point thereon $23\frac{1}{2}$ chains or thereabouts from the confluence of the River Burn and Birk Gill Beck measured in a westerly direction along the course of the river and also extending up the Birk Gill Beck to a point $19\frac{1}{2}$ chains or thereabouts measured in a north-westerly direction along the course of that stream from the said confluence :

Work No. 2 A reservoir (to be called the Leighton Reservoir) to be formed by means of an embankment or dam 17·5 chains or thereabouts in length across the Pott Beck at a point thereon 17 chains or thereabouts measured in a north-easterly direction from the house known as Park Bottom and extending from the said embankment or dam up the Pott Beck to a point on the said beck 52 chains or thereabouts from the confluence of Pott Beck and Grimes Gill Beck measured along the course of the Pott Beck and also extending up the Grimes Gill Beck for a distance of 46 chains or thereabouts from the last-mentioned confluence measured along the course of the said beck :

Work No. 4 An aqueduct (to be called Aqueduct No. 1) consisting of one or more conduits or lines of pipes commencing in the Colsterdale Reservoir by this Act authorised and terminating in the existing Swinsty Reservoir of the Corporation : A.D. 1901.

Work No. 5 An aqueduct (to be called Aqueduct No. 2) consisting of one or more conduits or lines of pipes commencing in the Leighton Reservoir by this Act authorised and terminating by a junction with Aqueduct No. 1 by this Act authorised :

Work No. 6 A road diversion (to be called Road Diversion No. 1) commencing and terminating in a road leading from Colsterdale Moor to the village of Healey :

Work No. 7 A diversion of the line of pipes belonging to the Masham Waterworks Company commencing in or near the tank or reservoir belonging to that company and terminating by a junction with the company's line of pipes in the field No. 438 on the $\frac{1}{2500}$ Ordnance map of the parish of Healey-with-Sutton :

Work No. 8 A road diversion (to be called Road Diversion No. 2) commencing in the road known as Coal Road and terminating by a junction with the Road Diversion No. 1 by this Act authorised :

Work No. 9 A catchwater or conduit (to be called Catchwater No. 1) commencing in the Colsterdale Reservoir by this Act authorised and terminating in the Leighton Reservoir by this Act authorised :

Work No. 12 A road diversion (to be called Road Diversion No. 5) commencing and terminating in a road leading from Healey to Pott Moor :

Work No. 13 A reservoir (to be called Carlesmoor Reservoir) to be formed by means of an embankment or dam twenty-seven chains in length or thereabouts across Carlesmoor Beck at a point 16 chains or thereabouts measured in a southeasterly direction from Swetton Bridge and extending from the said embankment or dam up the Carlesmoor Beck to a point thereon 28 chains or thereabouts measured along the course of the beck in a westerly direction from its confluence with Stock Beck and extending up Stock Beck for a distance of 42 chains or thereabouts measured in a northerly direction along the course of the said beck from the said confluence :

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Work No. 14 A reservoir (to be called the Laverton Reservoir) to be formed by means of an embankment or dam twenty-five chains in length or thereabouts across the River Laver at a point thereon 8 chains or thereabouts measured in a north-easterly direction from the confluence of the said river and Carlesmoor Beck and extending from the said embankment or dam up the River Laver to a point thereon six chains or thereabouts measured in a northerly direction from the house known as Low Ray Car and also extending up the Carlesmoor Beck to a point 8 chains or thereabouts measured in a north-westerly direction from Drift Lane Ford :

Work No. 15 An aqueduct (to be called Aqueduct No. 3) consisting of one or more conduits or lines of pipes commencing in the Carlesmoor Reservoir by this Act authorised and terminating by a junction with Aqueduct No. 1 by this Act authorised :

Work No. 16 A catchwater or conduit (to be called Catchwater No. 2) commencing in the River Laver at the confluence of the North Gill Beck and South Gill Beck and terminating in the Carlesmoor Reservoir by this Act authorised :

Work No. 17 A road diversion (to be called Road Diversion No. 6) commencing in the road leading from Carlesmoor to Kirkby Malzeard and terminating in the road from Carlesmoor to Lady Hill :

Work No. 18 A road diversion (to be called Road Diversion No. 7) commencing in a road leading from Carlesmoor to Kirkby Malzeard and terminating in Appleby Lane :

Work No. 19 A road diversion (to be called Road Diversion No. 8) commencing in the Road Diversion No. 6 and terminating in the Road Diversion No. 7 :

Work No. 20 A road diversion (to be called Road Diversion No. 9) commencing in Appleby Lane and terminating in the road leading from Laverton to Pateley Bridge :

Provided that in regard to the provisions of the Waterworks Clauses Act 1847 and for the purposes of this section the several areas of the works by this Act authorised shall be deemed to be the limits of the special Act and twenty-eight clear days shall be substituted for three clear days in regard to the notices to be given to the county councils of the North and West Ridings of Yorkshire respectively under section 30 of the said Act of 1847.

E. DW. 7.] *Leeds Corporation Water Act, 1901.* [Ch. cclvi.]

5. The Corporation in addition to the foregoing works may upon any lands for the time being belonging to them make and maintain all such cuts channels catchwaters aqueducts culverts tunnels drains junctions sluices by-washes weirs gauges wells tanks filter beds filters embankments dams retaining walls bridges roads approaches telegraphic and telephonic apparatus engines pumps machinery buildings appliances apparatus and conveniences connected with or ancillary to the said works or necessary for inspecting maintaining repairing cleansing managing working or using the same: A.D. 1901.
Subsidiary
waterworks.

Provided that no telegraphic or telephonic apparatus made and maintained under the authority of this Act shall be used for the purpose of transmitting telegrams in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

6. In constructing the works by this Act authorised the Corporation may deviate from the lines thereof to an extent not exceeding the limits of deviation shown on the deposited plans and amended plans respectively and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and may also deviate from the levels shown on the deposited sections and amended sections respectively to any extent not exceeding four feet upwards and to any extent downwards. Provided that if it be found necessary or expedient in the construction of the reservoirs by this Act authorised to alter the situation of any embankment or dam the Corporation shall not construct such embankment or dam of a greater maximum height above the general surface of the ground than three feet above the maximum height thereof shown on the deposited sections and amended sections respectively. Provided also that no part of the aqueducts by this Act authorised shall be constructed above the surface of the ground except so far as is shown on the deposited sections and amended sections respectively. Power to
deviate.

7. Subject to the provisions of this Act the Corporation may for the purposes of their waterworks collect impound take use get and appropriate all the waters of the River Burn at and above the embankment or dam of the Colsterdale Reservoir and of all the tributary streams and springs of that river above the said embankment or dam and also all the waters of the Pott Beck at and above the embankment or dam of the Leighton Reservoir and all the tributary streams and springs of that beck above the last-mentioned embankment or dam and also all the waters of the River Laver at Power to
take waters.

A.D. 1901. — and above the embankment or dam of the Laverton Reservoir and of all the tributary streams and springs of that river above the last-mentioned embankment or dam.

Compensation water.

8.—(1) As full compensation to all persons for taking diverting and appropriating all the waters of the Rivers Burn and Laver and their tributaries respectively which the Corporation are authorised to take by this Act and before they shall be entitled to take any such waters for supply they shall commence to discharge and shall thenceforth cause to be discharged or permit to flow from the under-mentioned reservoirs to and into the respective rivers on the course of which such reservoirs are respectively situate not less than the several quantities of compensation water following (namely) :—

(A) From the Colsterdale Reservoir on and from the completion and filling for use of that reservoir three millions six hundred and forty-eight thousand three hundred and thirty-six (3,648,336) gallons of water per day :

(B) From the Leighton Reservoir on and from the completion and filling for use of that reservoir two millions four hundred thousand nine hundred and seventy (2,400,970) gallons of water per day such quantity being inclusive of the compensation water which the Harrogate Corporation are by the Harrogate Act required to discharge from their Roundhill Reservoir :

(C) From the Laverton Reservoir on and from the completion and filling for use of that reservoir two millions seven hundred and twenty-eight thousand two hundred and forty-eight (2,728,248) gallons of water per day :

(D) If the Carlesmoor Reservoir shall be constructed before the Laverton Reservoir then from the Carlesmoor Reservoir on and from the completion and filling for use of that reservoir and until the Laverton Reservoir shall be completed and brought into use two millions three hundred and fifty-four thousand seven hundred and sixty (2,354,760) gallons of water per day :

And such compensation water shall be given in a regular and continuous flow throughout the twenty-four hours of each day :

Provided that during the first filling of the aforesaid reservoirs respectively the Corporation shall not collect and impound any of the waters of the Rivers Burn or Laver and their tributaries respectively as the case may be whenever a less quantity than the quantities of water hereinbefore specified to be discharged or to be permitted to flow from those reservoirs respectively shall be passing

down the River Burn or the River Laver as the case may be immediately below the outlet of the said reservoirs respectively. A.D. 1901.

(2) The Corporation shall construct and for ever after maintain within one hundred yards from the embankment or dam of the respective reservoirs aforesaid suitable gauges for measuring the quantities of water to be discharged or to flow from the reservoirs respectively and such gauges shall be open to the inspection and examination of any person appointed by the Board of Trade the board of conservators of the Yorkshire fishery district the lord mayor aldermen and citizens of the city of York and the York Waterworks Company or any of them and of the several persons for the time being interested in the water so to be discharged or flow through or over the same.

(3) In the event of any difference or disagreement between the Corporation and the bodies and persons mentioned in the last preceding subsection or any of them with respect to the construction maintenance or use of the gauges or any of them such difference or disagreement shall be settled and determined by an engineer to be agreed upon by the parties in difference or failing such agreement by an engineer to be nominated on the application of either party after seven days notice in writing to the other party by the President of the Institution of Civil Engineers in London.

(4) In case the Corporation omit or fail to discharge or permit to flow the several quantities of water by this section required to be discharged or to flow over or through the said several gauges the Corporation shall for every day on which such omission or failure shall occur pay a penalty not exceeding five pounds to the occupiers of any mills or works on the course of the rivers respectively who may have sustained loss by such omission or failure.

(5) In case the Corporation omit or fail to discharge or permit to flow the several quantities of water by this section required to be discharged or to flow over or through the said several gauges the Corporation shall for every day on which such omission or failure shall occur pay a penalty not exceeding twenty pounds to the board of conservators of the Yorkshire fishery district the lord mayor aldermen and citizens of the city of York and the York Waterworks Company or one of such bodies but so that one penalty only shall be recoverable under this subsection for each default.

9. If the works by this Act authorised and delineated on the deposited plans are not completed within ten years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof respectively or otherwise in

Period for
completion
of works.

A.D. 1901. — relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed. Provided that the Corporation may at any time lay down additional conduits or lines of pipes to form part of the aqueducts by this Act authorised.

Waterworks to be part of water undertaking of Corporation.

10. The waterworks authorised by this Act shall be deemed part of the water undertaking of the Corporation.

Power to acquire lands.

11. Subject to the provisions and for the purposes of this Act the Corporation may enter on take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference.

Limited quantity of lands to be taken from commons.

12. The quantities of land which may be taken by the Corporation from the under-mentioned commons for the purposes of this Act shall not exceed the respective quantities hereinafter mentioned (that is to say):—

In Roomer Common two roods ~~thirty~~ thirty-seven perches;

In Laverton Moor forty acres two roods twenty-five perches.

As to common rights.

13. The lands shown on the deposited plans and known as Colsterdale Moor and Masham Moor shall if acquired be purchased and taken subject to the existing rights of common (if any) over and in respect of the same but this provision shall not apply to any land reasonably required by the Corporation for the construction maintenance and user of the works authorised by this Act.

For protection of Harrogate Corporation.

14.—(1) Nothing in this Act contained shall empower the Corporation to take or acquire any land or any easement in any land or to cover with water any land beyond the limits of land authorised to be acquired by the Corporation and within the limits of deviation of land authorised to be acquired by the Harrogate Corporation without the consent of the Harrogate Corporation but such consent shall not be unreasonably withheld and any dispute as to whether such consent has been unreasonably withheld shall be determined by arbitration as hereinafter provided.

(2) Within nine months of the passing of this Act such portion of the plans and sections of the works of the Harrogate Corporation as proposed to be executed by them as shall be necessary for the purposes of this section shall be submitted to the Corporation who shall within three months thereafter submit to the Harrogate Corporation such portion of the plans and sections for the Leighton Reservoir as proposed to be executed by them as shall be necessary for the purposes of this section and if it shall within one month thereafter be alleged by the Harrogate Corporation by notice in writing to the Corporation that the works of the Corporation

[1 EDW. 7.] *Leeds Corporation Water Act, 1901.* [Ch. cclvi.]

involve the carrying out of any works for the protection of or in connection with the works of the Harrogate Corporation which would not have been required had the level of the said Leighton Reservoir not been raised as provided by the amended plans and sections the question as to whether the works shown on the plans and sections respectively so to be submitted as aforesaid by the two Corporations are reasonably necessary for the efficient carrying out of their respective works as authorised by their respective Acts or whether any modifications as regards mode of construction level or position of any of such works respectively within the respective limits of deviation can be made without unduly interfering with the efficiency of such works and without altering the top water level of the said Leighton Reservoir and if so whether the same ought to be made or whether any and if so what works have been rendered necessary which would not have been necessary or would not have been carried out had the level of the Leighton Reservoir not been raised as provided by the amended plans and sections and in what manner within the authorised limits of deviation of the two Acts and by whom such works shall be carried out and in what proportions the cost of the same shall be borne due allowance being made for any saving in expenditure by reason of the raising of the level of the Leighton Reservoir as aforesaid shall be referred to arbitration as hereinafter mentioned and the Corporations respectively shall execute such works do such acts and bear such costs as may be determined on such arbitration.

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(3) The powers contained in the section of this Act whereof the marginal note is "Power to deviate" shall not be exercised by the Corporation in respect of the upward deviation of the Leighton Reservoir by this Act authorised except with the consent of the Harrogate Corporation.

(4) The Corporation so far as they can do so without interfering with the construction or maintenance of their works shall give to the Harrogate Corporation such facilities for the construction of the tramway by the Harrogate Act authorised as the Harrogate Corporation shall reasonably require and on such terms and conditions as may be agreed or failing agreement as may be determined by arbitration as hereinafter provided.

(5) The questions in difference under this section shall be determined by a civil engineer or engineers to be appointed by the Corporation and the Harrogate Corporation respectively or by an umpire to be appointed by such arbitrators or failing agreement in this respect by an umpire to be appointed by the President of the Institution of Civil Engineers for the time being and in other

A.D. 1901. respects such arbitration shall be in accordance with the provisions of the Arbitration Act 1889.

Lands for
filter beds.

15. When the Corporation shall have acquired the lands at Adel-cum-Eccup shown on the deposited plans and described in the deposited book of reference or some of them they may appropriate and use the same for the construction thereon of filter beds with all necessary and proper approaches and conveniences.

Period for
compulsory
purchase of
lands.

16. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act.

Power to
acquire ease-
ments only
for aque-
ducts.

17.--(1) The Corporation may in lieu of acquiring any lands for the purpose of the aqueducts authorised by this Act acquire such easements and rights in such lands as they may require for the purpose of making maintaining cleansing repairing renewing and enlarging the aqueducts and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts.

(2) Provided that as regards any lands taken or used by the Corporation for the purpose of such aqueducts where they are laid underground the Corporation shall not (unless they give notice to treat for such lands and not merely for easements therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Corporation.

(3) Provided also that (except as to land forming part of a street) nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

For protec-
tion of
Ripon Rural

18. For the protection of the rural district council of Ripon (in this section referred to as "the council") the following

provisions shall unless otherwise agreed between the Corporation and the council have effect (that is to say) :--

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District
Council.

- (1) Notwithstanding anything in this Act contained the Corporation shall not enter upon take or use any part of the lands delineated on the deposited plans relating to the township of Kirkby Malzeard and thereon numbered 41 nor acquire any easement or other interest in over or affecting such lands or any part thereof :
- (2) At any time after the Corporation shall have constructed the aqueducts or lines of pipes (Works Nos. 4 and 15) by this Act authorised to be made and have commenced to supply water from the works by this Act authorised (or any one or more of them) the council shall be at liberty to serve notice upon the Corporation of their desire to be supplied by the Corporation with water in bulk for use within any township through which the said aqueducts respectively pass and the Corporation shall within six months after receipt of such notice commence and at all times thereafter continue to supply to the council at such place or places upon the said aqueducts or lines of pipes or any one or more of them as may be agreed between the Corporation and the council or in default of agreement determined by an arbitrator to be appointed by the President of the Institution of Civil Engineers such a quantity of water in bulk as the council shall from time to time reasonably require for use as aforesaid and the council shall take and pay for the same at such price as shall be agreed or failing agreement as shall be determined by arbitration as aforesaid For the purpose of measuring the said supply the Corporation shall at the expense of the council provide and fix all necessary and proper meters appliances and fittings Provided always that the Corporation shall not be under any obligation to supply water to the council so long as the Corporation would thereby be prevented from giving a full and efficient supply for domestic purposes within their water limits or if such supply be prevented by frost unusual drought or unavoidable accident or by reason of necessary repairs to any part of the works of the Corporation or if by reason of the default of the council any works of the council for the distribution of the water so supplied shall be in such a state of repair as to cause undue loss or waste of water The council shall be at liberty at any time or times at their own expense to execute all such works as may be necessary or expedient for distributing the said supply of water in such manner as they shall think fit :

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(3) The Corporation shall not stop up permanently or temporarily any part of any road within the council's district unless and until the diversion in substitution for the same shall be completed and opened for traffic :

(4) Where under the powers and for the purposes of this Act the Corporation shall break up or interfere with the surface of any road other than a county main road within the council's district such breaking up or interference shall only be carried out under the supervision and to the satisfaction of the council and in all respects in accordance with such conditions as the council shall reasonably require.

For protec-
tion of
Knares-
borough
Rural Dis-
trict Coun-
cil.

19. For the protection of the rural district council of Knaresborough (in this section referred to as "the council") the following provisions shall unless otherwise agreed between the Corporation and the council have effect (that is to say):—

(1) At any time after the Corporation shall have constructed the aqueduct or line of pipes Work No. 4 by this Act authorised and have commenced to supply water from the works by this Act authorised (or any one or more of them) the council shall be at liberty to serve notice upon the Corporation of their desire to be supplied by the Corporation with water in bulk for use within the township of Felliscliffe through which the said aqueduct passes and the Corporation shall within six months after receipt of such notice commence and at all times thereafter continue to supply to the council at such place or places upon the said aqueduct or line of pipes or any one or more of them as may be agreed between the Corporation and the council or in default of agreement determined by an arbitrator to be appointed by the President of the Institution of Civil Engineers such a quantity of water in bulk as the council shall from time to time reasonably require for use as aforesaid and the council shall take and pay for the same at such price as shall be agreed or failing agreement as shall be determined by arbitration as aforesaid :

(2) For the purpose of measuring the said supply the Corporation shall at the expense of the council provide and fix all necessary and proper meters appliances and fittings :

(3) Provided always that the Corporation shall not be under any obligation to supply water to the council so long as the Corporation would thereby be prevented from giving a full and efficient supply for domestic purposes within their water limits or if such supply be prevented by frost unusual drought

or unavoidable accident or by reason of necessary repairs to any part of the works of the Corporation or if by reason of the default of the council any works of the council for the distribution of the water so supplied shall be in such a state of repair as to cause undue loss or waste of water. The council shall be at liberty at any time or times at their own expense to execute all such works as may be necessary or expedient for distributing the said supply of water in such manner as they shall think fit.

A.D. 1901.

20. For the protection of the rural district council of Pateley Bridge (in this section referred to as "the council") the following provisions shall unless otherwise agreed between the Corporation and the council have effect (that is to say):—

For protection of Pateley Bridge Rural District Council.

- (1) At any time after the Corporation shall have constructed the aqueduct or line of pipes Work No. 4 by this Act authorised and have commenced to supply water from the works by this Act authorised (or any one or more of them) the council shall be at liberty to serve notice upon the Corporation of their desire to be supplied by the Corporation with water in bulk for use within the townships of Clint and Birstwith respectively through which the said aqueduct passes and the Corporation shall within six months after receipt of such notice commence and at all times thereafter continue to supply to the council at such place or places upon the said aqueduct or line of pipes or any one or more of them as may be agreed between the Corporation and the council or in default of agreement determined by an arbitrator to be appointed by the President of the Institution of Civil Engineers such a quantity of water in bulk as the council shall from time to time reasonably require for use as aforesaid and the council shall take and pay for the same at such price as shall be agreed or failing agreement as shall be determined by arbitration as aforesaid:
- (2) For the purpose of measuring the said supply the Corporation shall at the expense of the council provide and fix all necessary and proper meters appliances and fittings:
- (3) Provided always that the Corporation shall not be under any obligation to supply water to the council so long as the Corporation would thereby be prevented from giving a full and efficient supply for domestic purposes within their water limits or if such supply be prevented by frost unusual drought or unavoidable accident or by reason of necessary repairs to any part of the works of the Corporation or if by reason of the

A.D. 1901.

default of the council any works of the council for the distribution of the water so supplied shall be in such a state of repair as to cause undue loss or waste of water. The council shall be at liberty at any time or times at their own expense to execute all such works as may be necessary or expedient for distributing the said supply of water in such manner as they shall think fit.

For protection of North Eastern Railway Company.

21. All aqueducts conduits or pipes laid or proposed to be laid by the Corporation under the powers of this Act which shall cross any railway of the North Eastern Railway Company (hereinafter called "the company") shall in no case be nearer the bottom of the rails of the railway than 5 feet and in laying and maintaining any mains pipes culverts or other works upon across or under any work or property of the company the Corporation shall execute the work under the direction and superintendence and to the reasonable satisfaction of the engineer of the company and in accordance with plans drawings and specifications to be previously submitted to and reasonably approved by him and shall pay and make good to the company all loss damages and expenses which the said company shall sustain or be put to by or in consequence of the laying maintenance or user of the said aqueducts conduits or pipes and other works or by or in consequence of the bursting of any pipe or reservoir of the Corporation or otherwise howsoever. In case of any difference between the Corporation and the company or their respective engineers touching the meaning or effect of this section or in relation to anything done or to be done under its provisions the same shall be determined by a single arbitrator to be appointed in case of difference by the Board of Trade.

The Corporation shall not without the consent in writing of the company purchase or take any property of the company but they may purchase and take such right or easement or privilege over under or upon any lands or works of the company delineated on the deposited plans as shall be necessary for the purpose of making maintaining cleansing and repairing the aqueducts conduits or lines of pipes and other works by this Act authorised and the Corporation shall not either temporarily or permanently enter upon use or interfere with any railway or property of the company save only as far as may be necessary for the purposes of such right easement or privilege and in accordance with the provisions of this Act. Provided always that nothing in this Act contained shall enable the Corporation to interfere with any station or other building of the company without their consent in writing first had and obtained.

22. Notwithstanding anything in this Act contained the Corporation shall not under the powers hereinbefore conferred upon them enter on or take or use or acquire any interest in the churches churchyards vicarage houses or lands situate in the townships of Kirkby Malzeard and Laverton or any part thereof which are delineated on the deposited plans relating to the said townships and described in the deposited book of reference and are therein respectively numbered 11 and 12 in the said township of Kirkby Malzeard and 278 and 279 in the said township of Laverton.

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For protection of Masters &c. of Trinity College Cambridge.

23. In regard to the lands numbered on the deposited plans 50 in the township of Bishop Thornton and 6 in the township of Adel-cum-Eccup the Corporation shall not enter upon and take the same except with the consent in writing of the owners thereof respectively.

Not to take certain lands compulsorily.

24. For the protection of the urban district council of Masham (in this section referred to as "the council") the following provisions shall unless otherwise agreed between the Corporation and the council have effect (that is to say):—

For protection of Masham Urban District Council.

(1) Notwithstanding anything in this Act contained the Corporation shall not otherwise than by agreement with the council enter upon take or use any part of the lands delineated on the deposited plans relating to the parish of Healey and thereon numbered 37 nor otherwise than as aforesaid acquire any easement or other interest in over or affecting such lands or any part thereof. The Corporation shall not do or permit any act or thing which shall interfere with or injuriously affect either directly or indirectly the reservoir of the council or the springs which feed the same or which shall diminish the quantity of water flowing into the said reservoir. And the Corporation shall at all reasonable times permit the engineer of the Council or other person appointed by them for the purpose to enter upon any lands of the Corporation within the district of the council and to inspect and examine the same in order to ascertain whether the provisions of this section are complied with or for the purpose of reasonably and adequately maintaining the water supply of the council:

(2) The Corporation shall not remove or in any manner disturb or interfere with any part of the main or pipe of the council where the same is by this Act authorised to be diverted unless and until they shall have completed under the supervision of the council's engineer and to his reasonable satisfaction the laying of a new spigot and socketted 6-inch cast-iron main

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or pipe coated with Dr. Angus Smith's solution and jointed in lead weight per lineal yard 93 lbs. in the diverted line and shall have effected to the like reasonable satisfaction proper connections at each end of the diverted portion with the existing main or pipe of the council. The Corporation shall pay and discharge all the reasonable fees costs charges and expenses of the said engineer in respect of the matters aforesaid or in respect of any other act or thing done or to be done under the provisions of this section and shall indemnify the council therefrom :

(3) The said new main or pipe shall be provided with all necessary and proper valves and wash-outs for controlling the supply of water and flushing the pipes as efficiently as the council are now able to do :

(4) The whole length of main or pipe which shall by reason of such diversion cease to be used as a means of conveying water from the council's reservoir shall from and after the completion of the works lastly before referred to be and become the property of the Corporation :

(5) At any time after the Corporation shall have constructed the aqueduct or line of pipes (Work No. 4) by this Act authorised to be made and have commenced to supply water from the works by this Act authorised the council shall be at liberty to serve notice upon the Corporation of their desire to be supplied by the Corporation with water in bulk for use within the district of the council and the Corporation shall within six months after receipt of such notice commence and at all times thereafter continue to supply to the council by means of a main or pipe laid along Micklebury Lane to connect the delivery main of the Corporation by this Act authorised with the existing main or pipe of the council such a quantity of water in bulk as the council shall from time to time reasonably require for use as aforesaid and the council shall take and pay for the same at such price as shall be agreed or failing agreement as shall be determined by an arbitrator to be appointed by the President of the Institution of Civil Engineers. For the purpose of measuring the said supply of water the Corporation shall provide and fix all necessary and proper meters appliances and fittings. Provided always that the Corporation shall not be under any obligation to supply water to the council if and so long as the Corporation would thereby be prevented from giving a full and efficient supply for domestic purposes within their water limits

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or if such supply be prevented by frost unusual drought or unavoidable accident or by reason of necessary repairs to any part of the works of the Corporation or other works or if by reason of the default of the council any works of the council for the distribution of the water so supplied shall be in such a state of repair as to cause undue loss or waste of water. The council shall be at liberty at any time or times at their own expense to execute all such works as may be necessary or expedient for distributing the said supply of water in such manner as they shall think fit :

(6) The Corporation shall not stop up permanently or temporarily part of any road within the council's district to be diverted under this Act unless and until the diversion in substitution for the same shall be completed and open for traffic :

(7) Where under the powers and for the purposes of this Act the Corporation shall break up or interfere with the surface of any road other than a county main road within the council's district such breaking up or interference shall only be carried out under the supervision and to the satisfaction of the council and in all respects in accordance with such conditions as the council shall reasonably require :

(8) The Corporation shall at their own expense provide and lay all pipes and mains necessary or proper for such supply of water in bulk as aforesaid with all necessary and proper meters joints fittings and appliances.

25. The following provisions shall unless otherwise agreed in writing have effect for the protection of the Right Honourable Samuel Cunliffe Baron Masham and of the Honourable Samuel Cunliffe Lister both of Swinton Masham in the county of York their heirs and successors in estate and assigns for the time being entitled in possession whether for life or any greater estate to the estate known as the "Swinton estate" hereinafter called "the owners" :—

For protection of Right Hon. Lord Masham and the Hon. Samuel Cunliffe Lister.

(1) No land shall be acquired by the Corporation under the powers of this Act from the owners otherwise than by agreement except so much of the lands within the limits of deviation shown on the amended plans for the Colsterdale and Leighton Reservoirs respectively as the Corporation shall reasonably require for the construction maintenance and user of such reservoirs and the works connected therewith. Provided that the Corporation shall be entitled to acquire in accordance with the provisions of this Act easements for the

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purposes of the aqueduct and catchwater No. 1 authorised by this Act :

- (2) Any lands acquired by the Corporation under the powers of this Act shall be acquired subject to all existing tenancies and tenant right claims and every apportionment of rent is to be subject to the owner's consent :
- (3) The exclusive right of sporting and fishing over any lands acquired by the Corporation as aforesaid whether or not hereafter covered with water shall with access and right of entry be reserved or granted and belong to the owners who shall have the right to have upon each reservoir one boat house and two boats for the use of themselves and their friends Provided that the rights of fishing in and use of boats on the reservoirs shall not be assigned apart from the estate or the shooting rights thereover Provided further that the owners shall not in the exercise of the rights reserved do anything which may affect the purity of the water in the reservoirs :
- (4) The land tax and tithe rentcharge (if any) are to be apportioned at the expense of the Corporation :
- (5) There is to be reserved to the owners the use and privilege of drainage of all farms and places not purchased by the Corporation as now enjoyed and if any alterations or works interfering with such drainage are required by the Corporation in order to prevent pollution of the Corporation's water the costs of carrying out the alterations and works and of doing any other acts in order to provide an adequate and sufficient drainage for such farms and places are to be borne and paid by the Corporation and the owners may either carry out such alterations and works and charge the Corporation therewith or permit the Corporation to execute the same and in such case a month's written notice of any works required to be done shall be given to the owners :
- (6) The compensation to be paid by the Corporation to the owners and to all lessees and tenants of the said lands for the compulsory purchase of lands and for easements and rights and for damage done to crops or otherwise which may be sustained through the exercise of the powers of acquiring such lands easements and rights and otherwise in relation thereto shall failing agreement between the respective parties be settled in manner provided by the Lands Clauses Acts for determining questions of disputed compensation as if such

lands easements and rights were lands within the meaning of those Acts : A.D. 1901.

- (7) Notice to treat for the purchase of the lands shall be given within six months of the passing of this Act and the purchase shall be completed and possession given within three months after the amount of the purchase-money shall have been determined and if not so completed interest at the rate of four per centum per annum shall be paid from the expiration of such period of three months until payment :
- (8) The reservoirs to be made by the Corporation shall be fenced from the adjoining property by a substantial stone fence of dry rubble stone and coping set in mortar and of not less than five feet six inches in height from the ground level on the higher side with gates where required by the owners and such fences and gates shall be maintained by the Corporation in proper repair :
- (9) No barbed wire shall be used in the construction of fences or other works authorised by this Act :
- (10) In the construction of the catchwater the Corporation shall make and maintain where required by the owners a bridge or bridges ten feet wide with a gate at each end and where such catchwater shall intersect a fence shall also provide and fix a swing water gate or gates to prevent the passage of sheep or cattle along such catchwater :
- (11) The Corporation shall be responsible for all damage to stock of the owners or their tenants caused by reason of and during the execution of any of the works by this Act authorised and for all other damage to the owners or their tenants or their respective animals crops and property caused by workmen or others :
- (12) In constructing the aqueducts or catchwater the Corporation shall only execute such works during such period of the year as the owners shall reasonably approve :
- (13) The Corporation shall at all times give and maintain free of charge in all cases where a supply of water to any property of the owners or their tenants is severed or injured by reason of the works of the Corporation a proper and sufficient supply of not less than the supply existing before such severance or injury :
- (14) The Corporation before commencing the construction of any of the aqueducts or the catchwater authorised by this Act upon the estates of the owners shall cause plans and sections of the proposed works showing all reasonable details to be

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submitted to the owners in order that they may suggest any reasonable deviation or alterations in the mode of carrying out the works and in case a dispute as to the reasonableness of any such deviation or alteration the same shall be settled by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers. Provided that if no suggestion be made within one month after submission of plans and sections such plans and sections shall be deemed to have been approved :

- (15) In the construction and maintenance of the aqueducts or other works other than the reservoirs and the catchwater the Corporation shall first carefully remove from the surface all turf and vegetable soil on the line or site of works and on the completion of the works or any repairs or other maintenance they shall replace the turf and restore the surface as near as may be to its former level and state. All surplus material arising from the construction or maintenance of the works shall be disposed of as the owners may from time to time direct on the estates at any place not exceeding the distance of one mile from the work :
- (16) Any telegraph or telephone wires or other means of communication laid by the Corporation through the estates of the owners shall be placed underground by the side of and as near as practicable to the line of aqueduct :
- (17) The Corporation shall in constructing any aqueduct through any land of the owners fence in all excavations from time to time made on the lands of the owners or in some other effectual manner prevent cattle sheep and other animals from falling in such excavations and the Corporation shall when the works are completed remove such fences and shall restore the level surface of the ground excavated :
- (18) The Corporation shall from time to time at the request of the owners provide for the present or future drainage or sewerage of the estate suitable culverts or drains where interfered with by their works as authorised by this Act :
- (19) All fences gates watercourses roads conveniences and other matters and things belonging to the owners which may be interfered with by the Corporation during construction or maintenance of the works by this Act authorised shall subject to the provisions of this section forthwith after such interference be made good by the Corporation :
- (20) The Corporation shall compensate and indemnify the owners and their lessees and tenants for and against any loss or

damage caused by the leakage or bursting of the reservoirs aqueducts or works by this Act authorised or any other occurrence arising out of the said reservoirs aqueducts or works: A.D. 1901.

(21) The right of the owners and their tenants of passing over and using the land over or under the aqueducts for all purposes (except such as would injure the aqueducts or interfere with their maintenance) shall not be interfered with. It shall be lawful for the owners and their tenants to lay out construct and use along over or under the aqueducts any roads drains or pipes provided that such construction and use shall not interfere with or injure the aqueducts or any works by this Act authorised or the maintenance thereof. The Corporation shall not except with the consent of the owners fence off or sever any land of the owners in respect of which the Corporation acquire any easement or right:

(22) If by reason of the discharge of water into any stream or on any of the lands of the owners from any washouts any portion of the lands of the owners be flooded or other injury caused the Corporation shall compensate the owners and their tenants for any injury or loss occasioned thereby:

(23) The Corporation shall from time to time pay to the owners on demand the reasonable costs of the employment by them of a sufficient number of additional keepers or watchers for the protection of the game and for the prevention of persons trespassing upon lands of the owners next the works of the Corporation during the construction or any extraordinary repair of the same:

(24) No officer servant or agent of the Corporation shall at any time cross or come upon the estates of the owners without the written authority of the Corporation and such officer servant or agent shall at all times when upon such estates if required produce and show such authority to the owners their servants and agents:

(25) The Corporation shall not except during the construction or extraordinary repair of any works by this Act authorised erect or use any engine shaft or steam engine upon the lands purchased from the owners. The plans and designs of any buildings to be erected by the Corporation on such lands shall be submitted to the owners and be subject to their reasonable approval:

(26) Should the owners require the Corporation to deviate their aqueduct or line of pipes from any public road on to the

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adjoining land of the owners the Corporation shall be entitled to an easement therefor but shall not be required to pay for such easement:

- (27) The Corporation by reason of the acquisition by them of any lands under this Act shall not be deemed to acquire any rights in over or upon any common or commonable lands:
- (28) The Corporation in constructing or maintaining the Colsterdale or the Leighton Reservoir by this Act authorised shall not use for the purpose of conveyance of materials either of the roads adjoining Swinton Park:
- (29) The owners and their tenants shall be entitled at all times to pass over and along the top of the embankments of the Colsterdale and Leighton Reservoirs by this Act authorised:
- (30) In case the Corporation omit or fail to discharge or permit to flow the several quantities of water by this Act required to be discharged or to flow over or through the said several gauges into the River Burn the Corporation shall for every day on which such omission or failure shall occur pay a penalty not exceeding five pounds to the owners:
- (31) In case the owner so requires and secures the consent thereto of the Masham Urban District Council and the Leyburn Rural District Council the Road Diversion No. 2 by this Act authorised shall commence at a point on Coal Road 1626 yards or thereabouts measured in a westerly direction from Ford Bridge and shall proceed thence in a south-easterly direction to the point where the said road diversion is shown upon the amended plans as crossing the ford in Spruce Gill and thence along the line of work (subject to the authorised powers of deviation) shown on the amended plans to its termination:
- (32) All disputes between the owners and the Corporation relating to any matter contained in this section as to which no special provision is made in this section for the determination thereof shall be determined by arbitration in manner provided by the Arbitration Act 1889:
- (33) The provisions in this section shall be in addition to and not in derogation from any other provisions of this Act or any Act incorporated therewith which may enure for the protection or benefit of the owners.

For protec-
tion of Sir
C. Furness.

26. For the protection of Sir Christopher Furness M.P. or other the person or persons for the time being entitled in possession whether for life or any greater estate to the estate in the county

[1 EDW. 7.] *Leeds Corporation Water Act, 1901.* [Ch. cclvi.]

of York known as Grantley (in this section referred to as "the owner") the following provisions shall unless otherwise agreed between the Corporation and the owner have effect (that is to say) :— A.D. 1901.

(1) All aqueducts conduits or lines of pipes which the Corporation shall lay through any lands of the owner shall be laid underground and so that the top of the pipes shall throughout be not less than three feet below the present surface of the land For the purpose of laying such aqueducts conduits or lines of pipes the owner shall grant and the Corporation shall acquire an easement only and the Corporation shall not be entitled to compulsorily purchase or acquire the land in through or under which such aqueducts conduits or lines of pipes are to be laid :

(2) During the construction of the works of the Corporation the Corporation shall at their own expense provide and pay a sufficient staff of suitable and competent persons to supervise the men employed on any works upon or near the property of the owner so as to prevent trespass on any such lands and shall defray any reasonable additional expense to which the owner may be put in the employment of police keepers or watchers :

(3) In executing the Work No. 4 by this Act authorised or any authorised extension duplication or alteration thereof through or under the property of the owner the Corporation shall observe the following conditions :—

(A) Before commencing to execute such works the Corporation shall submit to the owner for his reasonable approval working plans and drawings showing all reasonable details and the owner shall be entitled to require any reasonable diversion of any such aqueduct through any part of his property whether within or beyond the limits of deviation if such diversion can be made without prejudicially affecting the flow of water through the same ;

(B) In the construction of such works the Corporation shall first carefully remove from the surface all turf and vegetable soil and on the completion of the works they shall replace such turf and soil and restore the surface as nearly as may be to its former level and state All surplus soil or material excavated from the said work shall be disposed of as the owner may from time to time direct at any place not exceeding a distance of

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three-quarters of a mile from the place at which it was excavated ;

(c) The time of year for executing the works shall be such as the owner shall reasonably direct and the owner shall be at liberty to require that any one line of pipes shall be executed in such stages (not being less than four months each) and with such intervening periods as he shall reasonably direct ;

(d) The Corporation shall during the execution of the said work fence in and keep fenced in the site of so much of the said work as may from time to time be in course of execution with a sufficient and not unsightly fence for which purpose no barbed wire shall be used and forthwith after the works shall have been completed and the surface of the ground properly restored and levelled the Corporation shall remove the said fence ;

(e) No line of tram rails except temporarily along the line of easement shall be laid on the estate nor shall any land for deposit of soil or other temporary purpose be taken in the property of the owner without his consent ;

(f) Any structures or things to be placed above the surface of the ground shall be subject to the reasonable approval of the owner :

(4) The purchase money and compensation to be paid by the Corporation to the owner for and in respect of the acquisition of such easement as aforesaid shall failing agreement be ascertained in manner provided by the Lands Clauses Acts :

(5) Notwithstanding anything in this Act contained the Corporation shall not discharge water out of any aqueduct or conduit into any stream which flows through or by any lands of the owner except at such times as the owner shall reasonably approve and if by reason of such discharge any portion of the estate of the owner shall be flooded or any injury be caused to any such stream the Corporation shall make full compensation to the owner for the injury or damage occasioned thereby :

(6) If any difference shall arise as to whether any requirement or direction of the owner is reasonable within the meaning of this section the same shall be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

For protec-
tion of

27. Whereas the lands which may be taken under the powers of this Act for the reservoirs to be called the Laverton Reservoir

and the Carlesmoor Reservoir and for purposes connected there- A.D. 1901.
with comprise large tracts of enclosed land belonging to the Most Marquess
Honourable George Frederick Samuel Marquess of Ripon K.G. of Ripon.
(who and whose heirs and successors in estate and assigns for the
time being entitled in possession whether for life or any greater
estate to the estates of the said marquess in the county of York
known as the Studley Royal Estate are in this section referred to as
“the owner”) as well as commonable and other lands situate in the
manor of Kirkby Malzeard of which the owner is or claims to be
lord the following provisions shall unless otherwise agreed between
the Corporation and the owner have full force and effect:—

- (1) All lines of pipe which the Corporation shall lay through any
lands of the owner shall be laid underground and so that the
top of the pipes shall throughout be not less than three feet
below the present surface of the land:
- (2) The owner shall at all times after completion of the works
of the Corporation have the right upon giving notice to the
Corporation to construct lay maintain and repair all such roads
lines of pipes sewers culverts drains or other works as he may
desire in through over and across any lands in respect of which
the Corporation shall have acquired easements. Provided
that in exercising such right the owner shall not wilfully do
or knowingly permit any act or thing which may injure
or interfere with any of the pipes or other works of the
Corporation:
- (3) The Corporation shall restore and make good to the reason-
able satisfaction of the owner or his engineer or surveyor all
drainage and sewerage of lands and buildings belonging to the
owner which shall be interfered with or prejudicially affected
by or in consequence of the works or operations of the Cor-
poration. The Corporation shall also restore and make good to
the like satisfaction all fences gates watercourses walls hedges
conveniences and other matters and things belonging to the
owner which shall be damaged or interfered with by the works
or operations of the Corporation:
- (4) The Corporation shall make full compensation to the owner
or his tenants for all loss or damage of whatsoever kind caused
by leakage or bursting of any reservoirs aqueducts or other
works or by flooding or washing from washouts from the
Aqueduct No. 1 described in this Act:
- (5) The Corporation shall if required by the owner fence off the
land acquired from the owner from the adjoining land by

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erecting at their own expense and to the reasonable satisfaction of the owner or his engineer or surveyor a substantial fence :

- (6) If the existing water supply to any property of the owner shall be cut off or interfered with by the works or operations of the Corporation the Corporation shall to the reasonable satisfaction of the owner or his engineer or surveyor provide free of charge a proper and sufficient permanent supply not less than the supply existing before such cutting off or interference and shall provide all the works necessary thereto :
- (7) The Corporation shall if required by the owner supply water by meter at a price which failing agreement shall be ascertained by arbitration as hereinafter provided to the village of Aldfield and to the hamlet of Fountains :
- (8) During the construction of the works of the Corporation the Corporation shall at their own expense provide and pay a sufficient staff of suitable and competent persons to supervise the men employed on any works upon or near the property of the owner so as to prevent trespass on any such lands and shall defray any reasonable additional expense to which the owner may be put in the employment of police keepers or watchers :
- (9) In the work of laying the Aqueduct No. 1 through the property of the owner the Corporation shall observe the following conditions :—
 - (A) Before commencing to execute such work the Corporation shall submit to the owner working plans and drawings showing all reasonable details for his reasonable approval and the owner shall be entitled to require any reasonable diversion of any such aqueduct through any part of his property whether within or beyond the limits of deviation so long as such diversion can be made upon the property of the owner and without prejudicially affecting the flow of water through the same ;
 - (B) In the construction of such work the Corporation shall first carefully remove from the surface all turf and vegetable soil and on the completion of the works they shall replace such turf and soil and restore the surface as nearly as may be to its former level and state All surplus soil or material excavated shall be disposed of as the owner may from time to time direct on his property at any place not exceeding a distance of one mile from the site of such excavation ;

- (c) The time of year for executing the work shall be such as the owner shall reasonably direct and the owner shall be at liberty to require that any one line of pipes shall be executed in three stages (not being more than four months each) and with such intervening periods as he shall reasonably direct ;
- (D) The Corporation shall during the execution of the works fence in and keep fenced in the site of the works with a sufficient and not unsightly fence No barbed wire shall be used in any part of such fence ;
- (E) No line of tram rails except temporarily along the line of easement shall be laid on the estate nor shall any land for deposit of soil or other temporary purpose be taken in the property of the owner without his consent ;
- (F) Any structures or things to be placed above the surface of the ground shall be subject to the reasonable approval of the owner :
- (10) In respect of any lands acquired from the owner there shall be granted and reserved to the owner the exclusive right subject as hereinafter mentioned for the owner and his friends authorised by him of sporting and fishing at all times after such purchase over the lands so purchased whether or not the same shall be covered with water together with full free and uninterrupted rights of access to and entry upon any part of such lands for all purposes connected with or incidental to such right Provided that in respect of the proposed Laverton Reservoir the Corporation shall be entitled to grant an equal right of sporting and fishing to George David Richmond and Thomas Other Burrill and their friends And the Corporation by agreement with the owner may assign to the owner the right of sporting and fishing over any other lands which the Corporation may acquire and the Corporation may also by agreement as aforesaid assign or otherwise effectually secure to the owner all rights relating to enclosure of the Dallowgill Moor which they may acquire as being attached to any such lands acquired by them as aforesaid and upon any such assignment or assurance all such right of enclosure shall cease to exist in the hands of any person other than the owner Provided that nothing in this section contained shall operate to increase or otherwise affect the rights claims and interests of any owner of lands having rights on the said moor and which lands are not acquired by the Corporation :

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(11) All rights of stray over Dallowgill Moor or any part thereof attached or incident to any lands purchased by the Corporation shall as from the date of such purchase be absolutely extinguished but the Corporation shall have for themselves or their tenants a right to turn out or permit to be turned out to graze on the said moor a number of sheep not greater than at the rate of two sheep for each acre or part of an acre of land which immediately previous to the purchase had any right of stray on such moor. All leases and agreements made or entered into by the Corporation with reference to the letting of such lands shall contain covenants by the lessees or tenants for the purpose of effecting this restriction :

(12) In the event of any works being made by any other Corporation or body affecting Stock Beck Moor the owner shall be entitled to proper protection in respect of his sporting and other rights :

(13) If any difference shall arise as to whether any requirement or direction of the owner is reasonable within the meaning of this section the same shall be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

Persons under disability may grant easements &c.

28. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to purchase lands in drainage areas and elsewhere by agreement.

29. In addition to the lands which the Corporation are empowered to purchase or take by compulsion they may purchase take on lease and acquire by agreement and hold for the purpose of protecting their waters and waterworks against nuisance encroachment or injury any lands in the areas within which any rivers streams or waters which the Corporation are authorised to take or impound flow or arise (which areas are in this Act referred to as "the drainage areas") and they may also for other purposes of their water undertaking purchase take on lease and acquire by agreement and hold any other lands not exceeding as regards the last mentioned lands fifty acres. Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands.

30. The Corporation may in and upon the lands acquired by the Corporation within the drainage areas or in or upon any other lands within the drainage areas with the consent of the owners lessees or occupiers of such lands construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Corporation are empowered to take or impound from being polluted fouled contaminated or discoloured and the Corporation may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road in or adjoining such lands subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

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Power to lay down sewers and drains in drainage areas.

31. The Corporation may grant leases of any of the lands acquired by them in the drainage areas for such terms and at such rents and subject to such covenants and conditions as they may think fit but such leases shall contain such covenants as the Corporation deem necessary or expedient for the prevention or regulation of any act or thing tending to the pollution of any waters which the Corporation are authorised to take or impound or tending to the injury of the waterworks of the Corporation and every such lease shall contain a proviso for re-entry in case of nonpayment of rent or breach of any of the lessees' covenants.

Lease of lands.

32. The Corporation on selling any lands acquired by them in connection with their water undertaking and not required for that purpose may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Reservation of water rights &c. on sale.

33. The Corporation may make and carry into effect agreements with any district council and the owners lessees and occupiers of any lands within the drainage areas with reference to the execution by the Corporation or such district council owners lessees or occupiers of such works as may be necessary or convenient for the purpose of draining such lands or any of them or for more effectually preserving the purity of the streams and waters which the Corporation are for the time being authorised to take or impound.

Power to agree as to drainage of lands &c.

A.D. 1901.

Byelaws for
securing
purity of
water.

34.—(1) The Corporation may make byelaws for securing the purity of the water which they are authorised to take or impound for the purposes of their waterworks and may by such byelaws prescribe the construction maintenance and use of proper sanitary conveniences and make provision for the prevention of nuisances and the prevention or regulation of any act or thing tending to pollution of the water.

(2) The byelaws made under this section shall be in force within the drainage areas or within so much of those areas as may be defined in the byelaws.

(3) All byelaws made under this section shall be subject to the approval of the district council of every district comprising any part of the area within which it is proposed that they shall be in force. Provided that such consent shall not be necessary where in the opinion of the Local Government Board it has been unreasonably withheld.

(4) The Corporation shall pay compensation to the owners of and other persons interested in any lands in respect of which byelaws shall be made under the provisions of this section who shall be injuriously affected by the restrictions imposed by such byelaws and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

(5) The provisions with respect to byelaws contained in sections 182 to 185 of the Public Health Act 1875 (except so much thereof as relates exclusively to byelaws of a rural sanitary authority) shall apply to byelaws which the Corporation are by this section authorised to make.

Power to
sell &c. lands.

35. Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands so far as such provisions are in each case applicable the Corporation may sell lease and dispose of any lands acquired by them under this Act and not for the time being required for the purposes thereof.

Application
of moneys
from sale &c.
of lands.

36. The Corporation shall apply all moneys from time to time received by them in respect of any sales or dispositions of lands by this Act authorised or by way of fine or premium on any lease of any lands acquired under the powers of this Act in or towards defraying any capital expenditure in respect of the works authorised by this Act or if there shall be no capital expenditure for the time being to be defrayed in or towards paying off moneys borrowed and for the time being owing under this Act.

Incorporation
of provision as
to houses of
labouring
class.

37. Section 18 (Restrictions as to houses of labouring classes) of the Leeds Corporation Act 1897 is incorporated with and shall apply to this Act as if the same had been set out in this Act.

38.—(1) For the purpose of executing any necessary work of repair or of cleansing or of examining any aqueduct or conduit by this Act authorised the Corporation may cause the water in any such aqueduct or conduit to be temporarily discharged into any available stream or watercourse.

A.D. 1901.

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Temporary
discharge of
water into
streams.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

39. So soon as the road diversions by this Act authorised shall respectively have been completed to the satisfaction of two justices and opened to the public the Corporation may stop up the several roads in substitution for which the respective road diversions are made between the points of commencement and termination of the said road diversions and thereupon the rights of way in or over the same shall be and the same are hereby extinguished and the site and soil of the portions of the roads stopped up and discontinued shall if and so far as the Corporation are the owners of the lands on both sides thereof be vested in them.

Stopping up
of roads and
vesting of
site and soil
in Corpora-
tion.

40. The road diversions by this Act authorised shall be maintained in repair by and at the cost of the Corporation for twelve months after their respective completion of which completion a certificate of two justices shall be conclusive evidence (which certificate two justices shall give on such completion being proved to their satisfaction) and from and after the expiration of the said respective periods of twelve months such road diversions shall be maintained in repair by and at the expense of the authority or person by whom or at whose expense the road in substitution for which the road diversion is made was repairable.

Maintenance
of diverted
roads.

41.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for (A) the purchase of land for and the construction of the works by this Act authorised and for purposes of their waterworks undertaking the sum of two millions two hundred thousand pounds and also for the payment of interest on moneys borrowed by the Corporation under the powers of this Act for the purchase of land for and for the execution of works until the expiration of ten years from the passing of this Act such further sums as may be requisite and (B) for paying the costs and expenses of this Act as hereinafter provided the sum required for that purpose.

Power to
borrow.

A.D. 1901.

(2) In addition to the moneys which the Corporation are by this section authorised to borrow they may borrow such further sum or sums of money for waterworks purposes as the Local Government Board may sanction.

(3) In order to secure the repayment of moneys borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge the revenue of their water undertaking and the city fund and city rate.

Periods for
payment of
moneys
borrowed.

42. The Corporation shall repay all moneys borrowed by them under this Act for the purposes (A) in the last preceding section of this Act mentioned within the period of sixty years from the date or dates of borrowing the same :

And as to all moneys borrowed for the purpose (B) in the last preceding section of this Act mentioned the Corporation shall repay the same within five years from the date or dates of borrowing the same :

And as to all moneys borrowed with the sanction of the Local Government Board the Corporation shall repay the same within such periods not exceeding sixty years as that Board may sanction.

Application
of sections
of Leeds Im-
provement
Act 1893.

43. The following sections of the Leeds Improvement Act 1893 shall (with the necessary modifications and subject to the provisions of this Act and of Articles II. and III. of the Leeds Order 1895 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 15) Act 1895—Session 2) apply in respect of moneys borrowed by the Corporation under this Act namely :—

Section 84 (Mode of raising moneys) ;

Section 86 (Provisions as to mortgages) ;

Section 88 (Mode of payment off of moneys borrowed on mortgage) ;

Section 90 (Power to re-borrow) ;

Section 91 (Protection of lender from inquiry) ;

Section 92 (Annual return to Local Government Board with respect to sinking fund) :

Provided that in regard to the said section 88 the Corporation shall not be obliged to pay any instalment or make the first payment to the sinking fund in respect of moneys raised for purpose (A) mentioned in the section of this Act whereof the marginal note is "Power to borrow" until the expiration of ten years from the date of the borrowing of the same.

Application
of money
borrowed.

44. Moneys borrowed by the Corporation under this Act shall be applied only to the several purposes in respect of which they

were respectively authorised to be borrowed and to which capital is properly applicable. A.D 1901.

45.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875. Inquiries
by Local
Government
Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

46. In the event of the Leeds Corporation (General Powers) Act passing into law in the present session of Parliament the sections of this Act with the following marginal notes namely "Application of moneys from sale &c. of lands" "Application of sections of Leeds Improvement Act 1893" "Application of money borrowed" and subsection (3) of the section of this Act with the marginal note "Power to borrow" shall cease to have any force or effect and notwithstanding anything in this Act the Corporation shall raise all moneys which they are by this Act authorised to borrow in accordance with the provisions of the Leeds Corporation (General Powers) Act and for that purpose the moneys authorised to be borrowed under this Act shall be deemed to be principal moneys within the meaning of that Act and in order to provide for the repayment of the moneys so authorised to be borrowed and the payment of interest thereon the revenue of the waterworks undertaking of the Corporation shall be specifically liable therefor and such moneys shall be primarily chargeable accordingly and this Act shall be included within the expression "Corporation Acts and Orders" as defined by the Leeds Corporation (General Powers) Act: Moneys to
be raised
under Leeds
Corporation
(General
Powers) Act
if passed.

Provided that the Corporation shall not be obliged to pay any instalment or make the repayment to the redemption fund in respect of moneys raised for purpose (A) mentioned in the section of this Act whereof the marginal note is "Power to borrow" until the expiration of ten years from the date of the borrowing of the same.

47. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses Recovery of
penalties.

A.D. 1901 — imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Audit of accounts.

48. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

Saving rights of duchy of Lancaster.

49. Nothing contained in this Act shall extend or operate to authorise the Company to take use enter upon or in any manner interfere with any land soil water or hereditaments or any land parcel of any manor or any manorial rights or any other rights of whatsoever description belonging to His Majesty in right of His duchy of Lancaster without the consent in writing of the Chancellor for the time being of the said duchy first had and obtained (which consent the said Chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by His Majesty His heirs or successors in right of His said duchy.

Saving powers of Board of Trade with regard to fish-passes.

50. Nothing in this Act contained and no act done or work executed thereunder shall be deemed to restrict or interfere with the powers of the Board of Trade under section 25 of the Salmon Fishery Act 1861 and section 46 of the Salmon Fishery Act 1873 with regard to fish-passes and no authority given or power conferred by this Act shall be deemed to be lawful authority within the meaning of the last-mentioned section.

Costs of Act.

51. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the city fund or city rate and ultimately out of moneys borrowed under this Act.

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